

FEDERAL MARITIME COMMISSION

Docket No. 22-21

MRSF, Inc.
v.
YANG MING MARINE TRANSPORT CORPORATION

**RESPONDENT’S RESPONSE TO COMPLAINANT’S
MOTION TO AMEND SCHEDULING ORDER**

Pursuant to the Commission’s Rules of Practice and Procedure 46 C.F.R. § 502.71(b), Respondent Yang Ming Marine Transport Corporation (“Respondent” or “Yang Ming”) respectfully responds to the Motion of MRSF, Inc. (“Complainant” or “MRSF”) to Amend Scheduling Order, filed on March 16, 2023 (“Motion”).

As Complainant correctly states, Respondent does not in principle oppose the Motion. We understand that lawyers often have obligations arise that require additional time, which we generally try to accommodate as a matter of courtesy, unless our client may be prejudiced as a result. Accordingly, Yang Ming does not oppose the Motion *if* the Presiding Officer makes an appropriate adjustment of the due date for Respondent’s Reply Brief.

As the Presiding Officer is aware, Mr. Jeffrey will be unavailable due to travel from May 9 through (and including) May 22. Accordingly, Yang Ming’s decision not to oppose the Motion is expressly conditioned on it being granted an extension of the deadline for the filing its Reply Brief, Responses to Proposed Findings of Fact, Proposed Findings of Fact, and Appendix to no earlier than June 14, 2023.

Discovery was due to close on February 17, but was delayed until March 10 due to Complainant's difficulty producing discovery responses. And indeed, Complainant has still not completed its promised production, which we are now informed may be completed on March 24. Motion at 2. Discovery by Complainant of Respondent closed on February 17, so Complainant will, under the proposed Amended Schedule, have from that date until April 21 (i.e., 63 calendar days), to prepare its opening brief, proposed findings of fact, and appendix. As a matter of fairness, therefore, Respondent respectfully requests that, if Complainant's time is extended as it requests (which we do not oppose), Respondent be given until at least June 14 (i.e., 31 calendar days, not counting the time counsel for Respondent is out of town) to prepare its responsive brief, proposed findings of fact, response to Complainant's proposed finding of fact, and appendix.

If, however, the Presiding Officer finds she cannot accommodate Respondent's calendar requirements, Respondent must regretfully oppose the Motion.

Dated: March 17, 2023

Respectfully submitted,

By: /s/ *Rebecca A. Fenneman*
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CERTIFICATE OF SERVICE

I certify that on the 17th day of March, 2023, a true and correct copy of the foregoing document was served by electronic mail on all counsel of record in accordance with 46 CFR Part 502 and the Commission's Order of May 12, 2020 as follows:

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